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NO. 33. SATURDAY, JUNE 17, 1721. *Cautions Against The Natural Encroachments Of Power. (Gordon)*

Sir,

Considering what sort of a creature man is, it is scarce possible to put him under too many restraints, when he is possessed of great power: He may possibly use it well; but they act most prudently, who, supposing that he would use it ill, inclose him within certain bounds, and make it terrible to him to exceed them.

Men that are above all fear, soon grow above all shame. *Rupto pudore & metu, suo tantum ingenio utebatur*, says Tacitus of Tiberius. Even Nero had lived a great while inoffensively, and reigned virtuously: But finding at last that he might do what he would, he let loose his appetite for blood, and committed such mighty, such monstrous, such unnatural slaughters and outrages, as none but a heart bent on the study of cruelty could have devised. The good counsels of Seneca and Burrhus were, for some time, checks upon his wolfish nature; and doubtless he apprehended, that if he made direct and downright war upon his people, they would use resistance and make reprisals: But discovering, by degrees, that they would bear any thing, and his soldiers would execute every thing, he grew into an open defiance with mankind, and daily and wantonly wallowed in their blood. Having no other rival, he seemed to rival himself, and every day's wickedness was blacker than another.

Yet Nero was not the worst of all men: There have been thousands as bad as he, and only wanted the same opportunity to shew it. And there actually have been many princes in the world who have shed more blood, and done more mischief to mankind, than Nero did. I could instance in a late one, who destroyed more lives than ever Nero destroyed, perhaps an hundred to one. It makes no difference, that Nero committed butcheries out of cruelty, and the other only for his glory: However the world may be deceived by the change of names into an abhorrence of the one, and an admiration of the other; it is all one to a nation, when they are to be slaughtered, whether they be slaughtered by the hangman or by dragoons, in prison or in the field; nor is ambition better than cruelty, when it begets mischief as great.

It is nothing strange, that men, who think themselves unaccountable, should act unaccountably, and that all men would be unaccountable if they could: Even those who have done nothing to displease, do not know but some time or other they may; and no man cares to be at the entire mercy of another. Hence it is, that if every man had his will, all men would exercise dominion, and no man would suffer it. It is therefore owing more to the necessities of men, than to their inclinations, that they have put themselves under the restraint of laws, and appointed certain persons, called magistrates, to execute them; otherwise they would never be executed, scarce any man having such a degree of virtue as willingly to execute the laws upon himself; but, on the contrary, most men thinking them a grievance, when they come to meddle with themselves and their property. *Suarum legum auctor & eversor*, was the character of

Pompey: He made laws when they suited his occasions, and broke them when they thwarted his will. And it is the character of almost every man possessed of Pompey's power: They intend them for a security to themselves, and for a terror to others. This shews the distrust that men have of men; and this made a great philosopher call the state of nature, a state of war; which definition is true in a restrained sense, since human societies and human laws are the effect of necessity and experience: Whereas were all men left to the boundless liberty which they claim from nature, every man would be interfering and quarrelling with another; every man would be plundering the acquisitions of another; the labour of one man would be the property of another; weakness would be the prey of force; and one man's industry would be the cause of another man's idleness.

Hence grew the necessity of government; which was the mutual contract of a number of men, agreeing upon certain terms of union and society, and putting themselves under penalties, if they violated these terms, which were called laws, and put into the hands of one or more men to execute. And thus men quitted part of their natural liberty to acquire civil security. But frequently the remedy proved worse than the disease; and human society had often no enemies so great as their own magistrates; who, where-ever they were trusted with too much power, always abused it, and grew mischievous to those who made them what they were. Rome, while she was free (that is, while she kept her magistrates within due bounds) could defend herself against all the world, and conquer it: But being enslaved (that is, her magistrates having broke their bounds) she could not defend herself against her own single tyrants, nor could they defend her against her foreign foes and invaders; for by their madness and cruelties they had destroyed her virtue and spirit, and exhausted her strength. This shews that those magistrates that are at absolute defiance with a nation, either cannot subsist long, or will not suffer the nation to subsist long; and that mighty traitors, rather than fall themselves, will pull down their country.

What a dreadful spirit must that man possess, who can put a private appetite in balance against the universal good of his country, and of mankind! Alexander and Caesar were that sort of men; they would set the world on fire, and spill its blood, rather than not govern it. Caligula knew that he was hated, and deserved to be hated; but it did not mend him. *Oderint dum metuant*, was his by-word: All that the monster aimed at, was to be great and terrible. Most of these tyrants died as became them; and, as they had reigned, by violence: But that did not mend their successors, who generally earned the fate of those that went before them, before they were warm in their place. *Invenit etiam aemulos infelix nequitia: Quid si floreat vigeatque?* "If unfortunate villainy thus finds rivals, what shall we say, when it exalts its head and prospers?"

There is no evil under the sun but what is to be dreaded from men, who may do what they please with impunity: They seldom or never stop at certain degrees of mischief when they have power to go farther; but hurry on from wickedness to wickedness, as far and as fast as human malice can prompt human power. *Ubi semel recto deerratum est, in praeceps pervenitur*—*a rectis in vitia, a vitiis in prava, a pravis in praecipitia*, says a Roman historian; who in this speaks the truth, though in other instances he tells many lies; I mean that base flatterer of power, Velleius Paterculus. So that when we

see any great mischief committed with safety, we may justly apprehend mischiefs still greater.

The world is governed by men, and men by their passions; which, being boundless and insatiable, are always terrible when they are not controuled. Who was ever satiated with riches, or surfeited with power, or tired with honours? There is a tradition concerning Alexander, that having penetrated to the Eastern Ocean, and ravaged as much of this world as he knew, he wept that there was never another world for him to conquer. This, whether true or no, shews the spirit of the man, and indeed of human nature, whose appetites are infinite.

People are ruined by their ignorance of human nature; which ignorance leads them to credulity, and too great a confidence in particular men. They fondly imagine that he, who, possessing a great deal by their favour, owes them great gratitude, and all good offices, will therefore return their kindness: But, alas! how often are they mistaken in their favourites and trustees; who, the more they have given them, are often the more incited to take all, and to return destruction for generous usage. The common people generally think that great men have great minds, and scorn base actions; which judgment is so false, that the basest and worst of all actions have been done by great men: Perhaps they have not picked private pockets, but they have done worse; they have often disturbed, deceived, and pillaged the world: And he who is capable of the highest mischief, is capable of the meanest: He who plunders a country of a million of money, would in suitable circumstances steal a silver spoon; and a conqueror, who steals and pillages a kingdom, would, in an humbler fortune, rifle a portmanteau, or rob an orchard.

Political jealousy, therefore, in the people, is a necessary and laudable passion. But in a chief magistrate, a jealousy of his people is not so justifiable, their ambition being only to preserve themselves; whereas it is natural for power to be striving to enlarge itself, and to be encroaching upon those that have none. The most laudable jealousy of a magistrate is to be jealous *for* his people; which will shew that he loves them, and has used them well: But to be jealous *of* them, would denote that he has evil designs against them, and has used them ill. The people's jealousy tends to preserve liberty; and the prince's to destroy it. Venice is a glorious instance of the former, and so is England; and all nations who have lost their liberty, are melancholy proofs of the latter.

Power is naturally active, vigilant, and distrustful; which qualities in it push it upon all means and expedients to fortify itself, and upon destroying all opposition, and even all seeds of opposition, and make it restless as long as any thing stands in its way. It would do what it pleases, and have no check. Now, because liberty chastises and shortens power, therefore power would extinguish liberty; and consequently liberty has too much cause to be exceeding jealous, and always upon her defence. Power has many advantages over her; it has generally numerous guards, many creatures, and much treasure; besides, it has more craft and experience, less honesty and innocence: And whereas power can, and for the most part does, subsist where liberty is not, liberty cannot subsist without power; so that she has, as it were, the enemy always at her gates.

Some have said, that magistrates being accountable to none but God, ought to know no other restraint. But this reasoning is as frivolous as it is wicked; for no good man cares how many punishments and penalties lie in his way to an offence which he does not intend to commit: A man who does not mean to commit murder, is not sorry that murder is punished with death. And as to wicked men, their being accountable to God, whom they do not fear, is no security to use against their folly and malice; and to say that we ought to have no security against them, is to insult common sense, and give the lie to the first law of nature, that of self-preservation. Human reason says, that there is no obedience, no regard due to those rulers, who govern by no rule but their lust. Such men are no rulers; they are outlaws; who, being at defiance with God and man, are protected by no law of God, or of reason. By what precept, moral or divine, are we forbid to kill a wolf, or burn an infected ship? Is it unlawful to prevent wickedness and misery, and to resist the authors of them? Are crimes sanctified by their greatness? And is he who robs a country, and murders ten thousand, less a criminal, than he who steals single guineas, and takes away single lives? Is there any sin in preventing, and restraining, or resisting the greatest sin that can be committed, that of oppressing and destroying mankind by wholesale? Sure there never were such open, such shameless, such selfish impostors, as the advocates for lawless power! It is a damnable sin to oppress them; yet it is a damnable sin to oppose them when they oppress, or gain by oppression of others! When they are hurt themselves ever so little, or but think themselves hurt, they are the loudest of all men in their complaints, and the most outrageous in their behaviour: But when others are plundered, oppressed, and butchered, complaints are sedition; and to seek redress, is damnation. Is not this to be the authors of all wickedness and falsehood?

To conclude: Power, without control, appertains to God alone; and no man ought to be trusted with what no man is equal to. In truth there are so many passions, and inconsistencies, and so much selfishness, belonging to human nature, that we can scarce be too much upon our guard against each other. The only security which we can have that men will be honest, is to make it their interest to be honest; and the best defence which we can have against their being knaves, is to make it terrible to them to be knaves. As there are many men wicked in some stations, who would be innocent in others; the best way is to make wickedness unsafe in any station.

I am, &c.,

P. S. This letter is the sequel of that upon human nature; and both are intended for an introduction to a paper which I intend to write upon the restraints which all wise nations put upon their magistrates.

G

The End of the First Volume.

[?]Taunton in Somersetshire.

[?]He was one of the commissioners of the forfeited estates in Ireland in the reign of King William.